

Weird Tales

The Unique Magazine

The
BIRD OF SPACE

BY
**EVERIL
WORRELL**

SEPTEMBER
25¢
1926

**E. PHILLIPS OPPENHEIM
HENRY S. WHITEHEAD
EDMOND HAMILTON
VICTOR ROUSSEAU
TALBERT JOSSELYN
H.P. LOVECRAFT
GREY LA SPINA
SEABURY QUINN**

Weird Tales

The Unique Magazine



The Project Gutenberg eBook of He

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: He

Author: H. P. Lovecraft

Illustrator: G. O. Olinick

Release date: July 17, 2022 [eBook #68547]

Most recently updated: October 18, 2024

Language: English

Original publication: United States: Popular Fiction Publishing Company,
1926

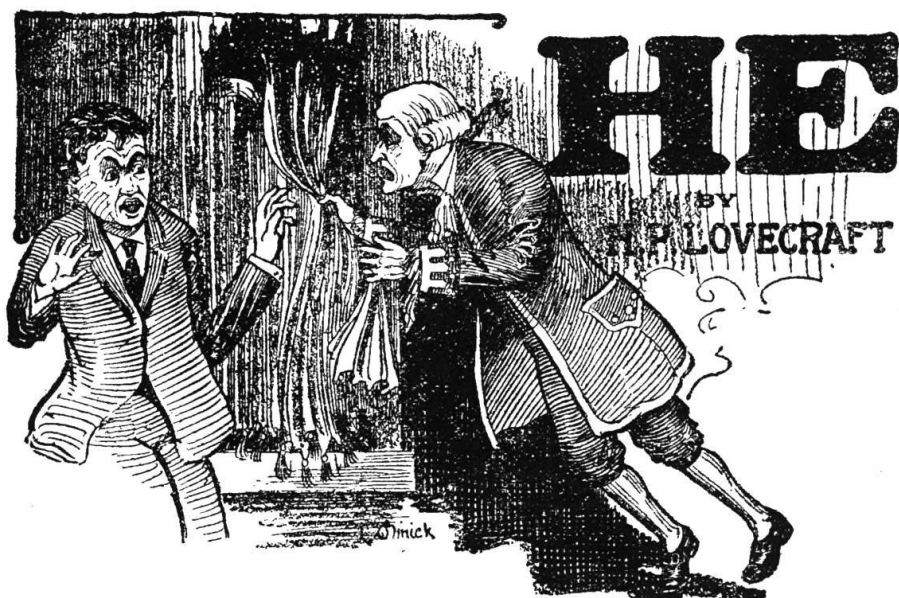
Other information and formats: www.gutenberg.org/ebooks/68547

Credits: Roger Frank

*** START OF THE PROJECT GUTENBERG EBOOK HE ***

HE

By H. P. Lovecraft



“The old man clawed and spat at me through the moldy air, and barked things in his throat as he swayed with the yellow curtain he clutched.”

I saw him on a sleepless night when I was walking desperately to save my soul and my vision. My coming to New York had been a mistake; for whereas I had looked for poignant wonder and inspiration in the teeming labyrinths of ancient streets that twist endlessly from forgotten courts and squares and waterfronts to courts and squares and waterfronts equally forgotten, and in the Cyclopean modern towers and pinnacles that rise blackly Babylonian under waning moons, I had found instead only a sense of horror and oppression which threatened to master, paralyze, and annihilate me.

The disillusion had been gradual. Coming for the first time upon the town, I had seen it in the sunset from a bridge, majestic above its waters, its incredible peaks and pyramids rising flowerlike and delicate from pools of violet mist to play with the flaming golden clouds and the first stars of evening. Then it had lighted up window by window above the shimmering tides where lanterns nodded and glided and deep horns bayed weird harmonies, and had itself become a starry firmament of dream, redolent of faery music, and one with the marvels of Carcassonne and Samarcand and El Dorado and all glorious and half-fabulous cities. Shortly afterward I was taken through those antique ways so dear to my fancy—narrow, curving alleys and passages where rows of red Georgian brick blinked with small-

paned dormers above pillared doorways that had looked on gilded sedans and paneled coaches—and in the first flush of realization of these long-wished things I thought I had indeed achieved such treasures as would make me in time a poet.

But success and happiness were not to be. Garish daylight showed only squalor and alienage and the noxious elephantiasis of climbing, spreading stone where the moon had hinted of loveliness and elder magic; and the throngs of people that seethed through the flumelike streets were squat, swarthy strangers with hardened faces and narrow eyes, shrewd strangers without dreams and without kinship to the scenes about them, who could never mean aught to a blue-eyed man of the old folk, with the love of fair green lanes and white New England village steeples in his heart.

So instead of the poems I had hoped for, there came only a shuddering blankness and ineffable loneliness; and I saw at last a fearful truth which no one had ever dared to breathe before—the unwhisperable secret of secrets—the fact that this city of stone and stridor is not a sentient perpetuation of Old New York as London is of Old London and Paris of Old Paris, but that it is in fact quite dead, its sprawling body imperfectly embalmed and infested with queer animate things which have nothing to do with it as it was in life. Upon making this discovery I ceased to sleep comfortably; though something of resigned tranquillity came back as I gradually formed the habit of keeping off the streets by day and venturing abroad only at night, when darkness calls forth what little of the past still hovers wraithlike about, and old white doorways remember the stalwart forms that once passed through them. With this mode of relief I even wrote a few poems, and still refrained from going home to my people lest I seem to crawl back ignobly in defeat.

Then, on a sleepless night's walk, I met the man. It was in a grotesque hidden courtyard of the Greenwich section, for there in my ignorance I had settled, having heard of the place as the natural home of poets and artists. The archaic lanes and houses and unexpected bits of square and court had indeed delighted me, and when I found the poets and artists to be loud-voiced pretenders whose quaintness is tinsel and whose lives are a denial of all that pure beauty which is poetry and art, I stayed on for love of these venerable things. I fancied them as they were in their prime, when Greenwich was a placid village not yet engulfed by the town; and in the hours before dawn, when all the revellers had slunk away, I used to wander

alone among their cryptical windings and brood upon the curious arcana which generations must have deposited there. This kept my soul alive, and gave me a few of those dreams and visions for which the poet far within me cried out.

The man came upon me at about 2 one cloudy August morning, as I was threading a series of detached courtyards; now accessible only through the unlighted hallways of intervening buildings, but once forming parts of a continuous network of picturesque alleys. I had heard of them by vague rumor, and realized that they could not be upon any map of today; but the fact that they were forgotten only endeared them to me, so that I had sought them with twice my usual eagerness. Now that I had found them, my eagerness was again redoubled; for something in their arrangement dimly hinted that they might be only a few of many such, with dark, dumb counterparts wedged obscurely betwixt high blank walls and deserted rear tenements, or lurking lamplessly behind archways, unbetrayed by hordes of the foreign-speaking or guarded by furtive and uncommunicative artists whose practises do not invite publicity or the light of day.

He spoke to me without invitation, noting my mood and glances as I studied certain knockered doorways above iron-railed steps, the pallid glow of traceried transoms feebly lighting my face. His own face was in shadow, and he wore a wide-brimmed hat which somehow blended perfectly with the out-of-date cloak he affected; but I was subtly disquieted even before he addressed me. His form was very slight, thin almost to cadaverousness; and his voice proved phenomenally soft and hollow, though not particularly deep. He had, he said, noticed me several times at my wanderings; and inferred that I resembled him in loving the vestiges of former years. Would I not like the guidance of one long practised in these explorations, and possessed of local information profoundly deeper than any which an obvious newcomer could possibly have gained?

As he spoke, I caught a glimpse of his face in the yellow beam from a solitary attic window. It was a noble, even a handsome, elderly countenance; and bore the marks of a lineage and refinement unusual for the age and place. Yet some quality about it disturbed me almost as much as its features pleased me—perhaps it was too white, or too expressionless, or too much out of keeping with the locality, to make me feel easy or comfortable. Nevertheless I followed him; for in those dreary days my quest for antique beauty and mystery was all that I had to keep my soul

alive, and I reckoned it a rare favor of Fate to fall in with one whose kindred seekings seemed to have penetrated so much farther than mine.

Something in the night constrained the cloaked man to silence, and for a long hour he led me forward without needless words; making only the briefest of comments concerning ancient names and dates and changes, and directing my progress very largely by gestures as we squeezed through interstices, tiptoed through corridors, clambered over brick walls, and once crawled on hands and knees through a low, arched passage of stone whose immense length and tortuous twistings effaced at last every hint of geographical location I had managed to preserve. The things we saw were very old and marvelous, or at least they seemed so in the few straggling rays of light by which I viewed them, and I shall never forget the tottering Ionic columns and fluted pilasters and urn-headed iron fenceposts and flaring-linteled windows and decorative fanlights that appeared to grow quainter and stranger the deeper we advanced into this inexhaustible maze of unknown antiquity.

We met no person, and as time passed the lighted windows became fewer and fewer. The streetlights we first encountered had been of oil, and of the ancient lozenge pattern. Later I noticed some with candles; and at last, after traversing a horrible unlighted court where my guide had to lead me with his gloved hand through total blackness to a narrow wooden gate in a high wall, we came upon a fragment of alley lit only by lanterns in front of every seventh house—unbelievably Colonial tin lanterns with conical tops and holes punched in the sides. This alley led steeply uphill—more steeply than I had thought possible in this part of New York—and the upper end was blocked squarely by the ivy-clad wall of a private estate, beyond which I could see a pale cupola, and the tops of trees waving against a vague lightness in the sky. In this wall was a small, low-arched gate of nail-studded black oak, which the man proceeded to unlock with a ponderous key. Leading me within, he steered a course in utter blackness over what seemed to be a gravel path, and finally up a flight of stone steps to the door of the house, which he unlocked and opened for me.

We entered, and as we did so I grew faint from a reek of infinite mustiness which welled out to meet us, and which must have been the fruit of unwholesome centuries of decay. My host appeared not to notice this, and in courtesy I kept silent as he piloted me up a curving stairway, across a

hall, and into a room whose door I heard him lock behind us. Then I saw him pull the curtains of the three small-paned windows that barely showed themselves against the lightening sky; after which he crossed to the mantel, struck flint and steel, lighted two candles of a candelabrum of twelve sconces, and made a gesture enjoining soft-toned speech.

In this feeble radiance I saw that we were in a spacious, well-furnished and paneled library dating from the first quarter of the Eighteenth Century, with splendid doorway pediments, a delightful Doric cornice, and a magnificently carved overmantel with scroll-and-urn top. Above the crowded bookshelves at intervals along the walls were well-wrought family portraits; all tarnished to an enigmatical dimness, and bearing an unmistakable likeness to the man who now motioned me to a chair beside the graceful Chippendale table. Before seating himself across the table from me, my host paused for a moment as if in embarrassment; then, tardily removing his gloves, wide-brimmed hat, and cloak, stood theatrically revealed in full mid-Georgian costume from queued hair and neck ruffles to knee-breeches, silk hose, and the buckled shoes I had not previously noticed. Now slowly sinking into a lyre-back chair, he commenced to eye me intently.

Without his hat he took on an aspect of extreme age which was scarcely visible before, and I wondered if this unperceived mark of singular longevity were not one of the sources of my original disquiet. When he spoke at length, his soft, hollow, and carefully muffled voice not infrequently quavered; and now and then I had great difficulty in following him as I listened with a thrill of amazement and half-disavowed alarm which grew each instant.

“You behold, Sir,” my host began, “a man of very eccentric habits, for whose costume no apology need be offered to one with your wit and inclinations. Reflecting upon better times, I have not scrupled to ascertain their ways and adopt their dress and manners; an indulgence which offends none if practised without ostentation. It hath been my good fortune to retain the rural seat of my ancestors, swallowed though it was by two towns, first Greenwich, which built up hither after 1800, then New York, which joined on near 1830. There were many reasons for the close keeping of this place in my family, and I have not been remiss in discharging such obligations. The squire who succeeded to it in 1768 studied sartain arts and made sartain discoveries, all connected with influences residing in this particular plot of

ground, and eminently deserving of the strongest guarding. Some curious effects of these arts and discoveries I now purpose to show you, under the strictest secrecy; and I believe I may rely on my judgment of men enough to have no distrust of either your interest or your fidelity.”

He paused, but I could only nod my head. I have said that I was alarmed, yet to my soul nothing was more deadly than the material daylight world of New York, and whether this man were a harmless eccentric or a wielder of dangerous arts I had no choice save to follow him and slake my sense of wonder on whatever he might have to offer. So I listened.

“To—my ancestor,” he softly continued, “there appeared to reside some very remarkable qualities in the will of mankind; qualities having a little-suspected dominance not only over the acts of one’s self and of others, but over every variety of force and substance in Nature, and over many elements and dimensions deemed more universal than Nature herself. May I say that he flouted the sanctity of things as great as space and time and that he put to strange uses the rites of sartain half-breed red Indians once encamped upon this hill? These Indians showed choler when the place was built, and were plaguey pestilent in asking to visit the grounds at the full of the moon. For years they stole over the wall each month when they could, and by stealth performed sartain acts. Then, in ’68, the new squire caught them at their doings, and stood still at what he saw. Thereafter he bargained with them and exchanged the free access of his grounds for the exact inwardness of what they did; larning that their grandfathers got part of their custom from red ancestors and part from an old Dutchman in the time of the States-General. And pox on him, I’m afeared the squire must have sarved them monstrous bad rum—whether or not by intent—for a week after he larnt the secret he was the only man living that knew it. You, Sir, are the first outsider to be told there is a secret, and split me if I’d have risked tampering that much with—the powers—had ye not been so hot after bygone things.”

I shuddered as the man grew colloquial—and with the familiar speech of another day. He went on.

“But you must know, Sir, that what—the squire—got from those mongrel salvages was but a small part of the larning he came to have. He had not been at Oxford for nothing, nor talked to no account with an ancient chymist and astrologer in Paris. He was, in fine, made sensible that all the world is but the smoke of our intellects; past the bidding of the vulgar, but

by the wise to be puffed out and drawn in like any cloud of prime Virginia tobacco. What we want, we may make about us; and what we don't want, we may sweep away. I won't say that all this is wholly true in body, but 'tis sufficient true to furnish a very pretty spectacle now and then. You, I conceive, would be tickled by a better sight of sartain other years than your fancy affords you; so be pleased to hold back any fright at what I design to show. Come to the window and be quiet."

My host now took my hand to draw me to one of the two windows on the long side of the malodorous room, and at the first touch of his ungloved fingers I turned cold. His flesh, though dry and firm, was of the quality of ice; and I almost shrank away from his pulling. But again I thought of the emptiness and horror of reality, and boldly prepared to follow whithersoever I might be led. Once at the window, the man drew apart the yellow silk curtains and directed my stare into the blackness outside. For a moment I saw nothing save a myriad of tiny dancing lights, far, far before me. Then, as if in response to an insidious motion of my host's hand, a flash of heat-lightning played over the scene, and I looked out upon a sea of luxuriant foliage—foliage unpolluted, and not the sea of roofs to be expected by any normal mind. On my right the Hudson glittered wickedly, and in the distance ahead I saw the unhealthy shimmer of a vast salt marsh constellated with nervous fireflies. The flash died, and an evil smile illumined the waxy face of the aged necromancer.

"That was before my time—before the new squire's time. Pray let us try again."

I was faint, even fainter than the hateful modernity of that accursed city had made me.

"Good God!" I whispered; "can you do that for *any time*?" And as he nodded, and bared the black stumps of what had once been yellow fangs, I clutched at the curtains to prevent myself from falling. But he steadied me with that terrible, ice-cold claw, and once more made his insidious gesture.

Again the lightning flashed—but this time upon a scene not wholly strange. It was Greenwich, the Greenwich that used to be, with here and there a roof or row of houses as we see it now, yet with lovely green lanes and fields and bits of grassy common. The marsh still glittered beyond, but in the farther distance I saw the steeples of what was then all of New York;

Trinity and St. Paul's and the Brick Church dominating their sisters, and a faint haze of wood smoke hovering over the whole. I breathed hard, but not so much from the sight itself as from the possibilities my imagination terrifiedly conjured up.

"Can you—dare you—go *far*?" I spoke with awe, and I think he shared it for a second, but the evil grin returned.

"*Far*? What I have seen would blast ye to a mad statue of stone! Back, back—forward, *forward*—look, ye puling lack-wit!"

And as he snarled the phrase under his breath he gestured anew; bringing to the sky a flash more blinding than either which had come before. For full three seconds I could glimpse that pandemoniac sight, and in those seconds I saw a vista which will ever afterward torment me in dreams. I saw the heavens verminous with strange flying things, and beneath them a hellish black city of giant stone terraces with impious pyramids flung savagely to the moon, and devil-lights burning from unnumbered windows. And swarming loathsomely on aerial galleries I saw the yellow, squint-eyed people of that city, robed horribly in orange and red, and dancing insanely to the pounding of fevered kettle-drums, the clatter of obscene crotala, and the maniacal moaning of muted horns whose ceaseless dirges rose and fell undulantly like the waves of an unhallowed ocean of bitumen.

I saw this vista, I say, and heard as with the mind's ear the blasphemous domdaniel of cacophony which companioned it. It was the shrieking fulfilment of all the horror which that corpse-city had ever stirred in my soul, and forgetting every injunction to silence I screamed and screamed and screamed as my nerves gave way and the walls quivered about me.

Then, as the flash subsided, I saw that my host was trembling too; a look of shocking fear half-blotting from his face the serpent distortion of rage which my screams had excited. He tottered, clutched at the curtains as I had done before, and wriggled his head wildly, like a hunted animal. God knows he had cause, for as the echoes of my screaming died away there came another sound so hellishly suggestive that only numbed emotion kept me sane and conscious. It was the steady, stealthy creaking of the stairs beyond the locked door, as with the ascent of a barefoot or skin-shod horde; and at last the cautious, purposeful rattling of the brass latch that glowed in the feeble candlelight. The old man clawed and spat at me through the moldy air, and barked things in his throat as he swayed with the yellow curtain he clutched.

“The full moon—damn ye—ye . . . ye yelping dog—ye called ’em, and they’ve come for me! Moccasined feet—dead men—Gad sink ye, ye red devils, but I poisoned no rum o’ yours—han’t I kept your pox-rotted magic safe?—ye swilled yourselves sick, curse ye, and ye must needs blame the squire—let go, you! Unhand that latch—I’ve naught for ye here——”

At this point three slow and very deliberate raps shook the panels of the door, and a white foam gathered at the mouth of the frantic magician. His fright, turning to steely despair, left room for a resurgence of his rage against me; and he staggered a step toward the table on whose edge I was steadying myself. The curtains, still clutched in his right hand as his left clawed out at me, grew taut and finally crashed down from their lofty fastenings; admitting to the room a flood of that full moonlight which the brightening of the sky had presaged. In those greenish beams the candles paled, and a new semblance of decay spread over the musk-reeking room with its wormy paneling, sagging floor, battered mantel, rickety furniture, and ragged draperies. It spread over the old man, too, whether from the same source or because of his fear and vehemence, and I saw him shrivel and blacken as he lurched near and strove to rend me with vulturine talons. Only his eyes stayed whole, and they glared with a propulsive, dilated incandescence which grew as the face around them charred and dwindled.

The rapping was now repeated with greater insistence, and this time bore a hint of metal. The black thing facing me had become only a head with eyes, impotently trying to wriggle across the sinking floor in my direction, and occasionally emitting feeble little spits of immortal malice. Now swift and splintering blows assailed the sickly panels, and I saw the gleam of a tomahawk as it cleft the rending wood. I did not move, for I could not; but watched dazedly as the door fell in pieces to admit a colossal, shapeless influx of inky substance starred with shining, malevolent eyes. It poured thickly, like a flood of oil bursting a rotten bulkhead, overturned a chair as it spread, and finally flowed under the table and across the room to where the blackened head with the eyes still glared at me. Around that head it closed, totally swallowing it up, and in another moment it had begun to recede; bearing away its invisible burden without touching me, and flowing again out of that black doorway and down the unseen stairs, which creaked as before, though in reverse order.

Then the floor gave way at last, and I slid gaspingly down into the nighted chamber below, choking with cobwebs and half-swooning with

terror. The green moon, shining through broken windows, showed me the hall door half open; and as I rose from the plaster-strewn floor and twisted myself free from the sagged ceiling, I saw sweep past it an awful torrent of blackness, with scores of baleful eyes glowing in it. It was seeking the door to the cellar, and when it found it, it vanished therein. I now felt the floor of this lower room giving as that of the upper chamber had done, and once a crashing above had been followed by the fall past the west window of something which must have been the cupola. Now liberated for the instant from the wreckage, I rushed through the hall to the front door; and finding myself unable to open it, seized a chair and broke a window, climbing frenziedly out upon the unkempt lawn where moonlight danced over yard-high grass and weeds. The wall was high, and all the gates were locked; but moving a pile of boxes in a corner I managed to gain the top and cling to the great stone urn set there.

About me in my exhaustion I could see only strange walls and windows and old gambrel roofs. The steep street of my approach was nowhere visible, and the little I did see succumbed rapidly to a mist that rolled in from the river despite the glaring moonlight. Suddenly the urn to which I clung began to tremble, as if sharing my own lethal dizziness; and in another instant my body was plunging downward to I knew not what fate.

The man who found me said that I must have crawled a long way despite my broken bones, for a trail of blood stretched off as far as he dared look. The gathering rain soon effaced this link with the scene of my ordeal, and reports could state no more than that I had appeared from a place unknown, at the entrance of a little black court off Perry Street.

I never sought to return to those tenebrous labyrinths, nor would I direct any sane man thither if I could. Of who or what that ancient creature was, I have no idea; but I repeat that the city is dead and full of unsuspected horrors. Whither *he* has gone, I do not know; but I have gone home to the pure New England lanes up which fragrant sea-winds sweep at evening.

Transcriber's Note: This story appeared in the September 1926 issue of *Weird Tales Magazine*.

*** END OF THE PROJECT GUTENBERG EBOOK HE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.